



US Department
of Transportation

Research and
Special Programs
Administration

400 Seventh St. S.W.
Washington D.C. 20590

**DOT-E 7957
(SECOND REVISION)**

1. **Process Engineering, Inc., Plaistow, New Hampshire, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell the packaging described in paragraph 7 below for the transportation of carbon dioxide, liquefied described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the use of an aluminum cargo tank that complies with 49 CFR 178.337, except § 178.337-6, and provides no relief from any regulation other than as specifically stated.**

2. **BASIS.** This exemption is based on Process Engineering, Inc.'s application dated January 3, 1985, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

3. **HAZARDOUS MATERIALS (Descriptor and class).** Carbon dioxide, liquefied, classed as a nonflammable gas.

4. **PROPER SHIPPING NAME (49 CFR 172.101).** Carbon dioxide.

5. **REGULATION AFFECTED.** 49 CFR 173.33(a), 173.315(a)(1), 177.824(c)(4), 178.337.

6. **MODE OF TRANSPORTATION AUTHORIZED.** Motor vehicle.

7. **SAFETY CONTROL MEASURES.** Packaging prescribed is a non-DOT specification aluminum cargo tank that must comply with the requirements of 49 CFR 178.337 except that the manhole requirement in § 178.337-6 is waived. Further:

- a. Heat treatment and Charpy impact tests are not required.
- b. Maximum weight of carbon dioxide contained is 48,000 pounds.
- c. The metal identification plate (§ 178.337-17) must not be marked "DOT specification number MC331". Instead, the plate must bear the markings "DOT-E 7957" in addition to the other markings.
- d. The manufacturer's certificate (§ 178.337-18) must be modified to reflect the provisions of this exemption.

8. **SPECIAL PROVISIONS.**

- a. Shippers may use the packaging covered by this exemption pursuant to 49 CFR 173.22a.
- b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

d. Each cargo tank must be reinspected and retested once every 5 years in accordance with 49 CFR 173.33(d) as prescribed for DOT Specification MC331 cargo tanks. Pneumatic retesting at one and one-half times the design pressure is authorized in place of the required hydrostatic test. Compliance with 49 CFR 177.824(c)(4) is hereby waived.

e. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 7957".

9. REPORTING REQUIREMENTS. Any incident involving unintentional loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. March 15, 1987.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

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(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA